

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
VANESSA GONNEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ERIC
DILEONARDO, and POLICE OFFICERS JOHN DOES
#1-2 (names and number of whom are unknown at present),
and other unidentified members of the New York City
Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

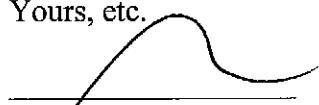
Plaintiff designate KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 24, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
VANESSA GONNEY,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT
JURY TRIAL DEMANDED

THE CITY OF NEW YORK, POLICE OFFICER ERIC
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#1-2 (names and number of whom are unknown at present),
and other unidentified members of the New York City
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Plaintiff, VANESSA GONNEY, by her attorneys, Jacobs & Hazan, LLP, as and for their
Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff, while lawfully walking on the sidewalk in the vicinity of the intersection of Pitkin Avenue and Hinsdale Street, Brooklyn, New York was unlawfully arrested by New York City police officers. Plaintiff was deprived of her constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, and caused the unjustifiable arrest of plaintiff. Further, defendants maliciously prosecuted plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Vanessa Gonney is a citizen of the United States and a resident of the County of Kings, City and State of New York.

3. New York City Police Officer Eric Dileonardo is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. Police Officer Dileonardo is being sued in his individual capacity and official capacity.

5. New York City Police Officers John Doe #1-2 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

6. Police Officers John Doe #1-2 are being sued in their individual and official capacities.

7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

8. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

12. The CITY OF NEW YORK has failed to schedule a hearing pursuant to 50-h of the general municipal law.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On August 29, 2010 at approximately 11:30 p.m., plaintiff Vanessa Gonney, a 43 year old female, was lawfully walking on the sidewalk in the vicinity of the intersection of Pitkin Avenue and Hinsdale Street, Brooklyn, New York.

16. Plaintiff Vanessa Gonney had just left her home located at 157 Belmont, Brooklyn.

17. After walking for a short period of time, plaintiff approached the intersection of Pitkin Avenue and Hinsdale Street when a New York City police van pulled up next to her.

18. Defendants Dileonardo and Police Officers John Does #1-2 exited the police van and detained plaintiff.

19. The individually named police officer defendants detained plaintiff without reasonable suspicion or probable cause.

20. The individually named police officer defendants asked plaintiff if she had identification on her and asked her if she had ever been arrested for prostitution.

21. The individually named police officer defendants then proceeded to conduct a search of plaintiff's person without probable cause.

22. Plaintiff did not commit any crime.

23. Plaintiff was handcuffed and arrested by the individually named police officer defendants without probable cause.

24. The individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable arrest of plaintiff.

25. The individually named police officer defendants charged plaintiff with loitering for the purpose of engaging in prostitution offense.

26. Plaintiff was put into a police van and transported to the 73rd precinct for arrest processing.

27. Upon arrival at the 73rd precinct, plaintiff was searched by a female officer, who looked inside her bra and pants.

28. Plaintiff was then handcuffed to a bench for approximately four (5) hours before she was given a Desk Appearance Ticket (DAT) and released from NYPD custody on August 30, 2010.

29. Thereafter, plaintiff was required to return to Court on three (3) occasions before the case was dismissed by the Kings County District Attorney's Office on November 19, 2010.

30. The false arrest, false imprisonment, and malicious prosecution of plaintiff by defendants Police Officer Dileonardo and Police Officers John Does #1-2 caused plaintiff to sustain psychological and emotional trauma.

31. A notice of claim was timely served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. Defendants Police Officer Dileonardo and Police Officers John Does #1-2, who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned and criminally prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

36. Defendants Police Officer Dileonardo and Police Officers John Does #1-2 were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

37. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Malicious Prosecution

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.

40. Defendants commenced and continued a criminal proceeding against plaintiff.

41. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which she was prosecuted.

42. The prosecution and criminal proceedings terminated favorably to plaintiff on November 19, 2010.

43. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

44. Defendants Police Officer Dileonardo and Police Officers John Does #1-2 were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants Police Officer Dileonardo and Police Officers John Does #1-2, individuals who were unfit for the performance of police duties on August 29, 2010, at the aforementioned location.

FIFTH CAUSE OF ACTION

Failure to Intervene

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

50. Defendants failed to intervene to prevent the unlawful conduct described herein.

51. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

52. Defendants Police Officer Dileonardo and Police Officers John Does #1-2 were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

SIXTH CAUSE OF ACTION

Negligence

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. Defendants owed a duty of care to plaintiff.

56. Defendants breached that duty of care by falsely arresting and maliciously prosecuting plaintiff.

57. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

58. All of the foregoing occurred without any fault or provocation by plaintiff.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. By the actions described herein, defendants Police Officer Dileonardo and Police Officers John Does #1-2, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Vanessa Gonne. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

62. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

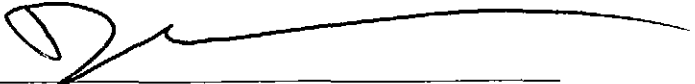
JURY DEMAND

64. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff VANESSA GONNEY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 24, 2013

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 24, 2013



STUART E. JACOBS